in the funds the children under age will have the benefit of it" (*a*).

SECTION IV.

IN WHAT MODE THE PORTIONS ARE TO BE RAISED.

Where an estate is settled subject to portions, the presumed intention is that the portions should impede as little as possible the devolution of the property in the main channel of the limitations. Moral duty requires that some support should be secured for the younger children, but this should be done at as little sacrifice as circumstances will allow to the family consequence as represented by the eldest son.

1. **Modes of raising portions.** — In raising portions, therefore, it is *primâ facie* undesirable to *sell* any part of the estate. So recourse should rather be had to levying the required amount by a side wind, as by the produce of *mines* or a fall of *timber;* or, if this cannot be done, then by *a mortgage* rather than by an absolute disposition, for though a mortgage is usually accompanied with a power of sale, so that eventually the property may pass into the hands of a stranger, yet until actual sale the owner under the settlement has the opportunity of paying off the charge from his private means. In every case, however, the language of the instrument must govern. If portions be simply *charged* on an estate, either expressly or by implication, (as where a charge is implied from a power limited to the portionist of distraining for non-payment (*b*),) the money may be raised by mortgage or sale as in the case of any other charge.

2. **Where a sale is excluded.** — A trust to raise the portions by *mortgage* will not authorise a *sale*, but if the trust be to levy the amount by mortgage or *otherwise* a power of sale is implied (*c*). If the trust be to raise the charge by and out of the rents or by such other ways and means *except*
[*419] * *a sale* as the trustees may think proper, not only a sale is prohibited but a mortgage also which may lead

(*a*) Gillibrand *v*. Goold, 5 Sim. 149.
(*b*) Meynell *v*. Massey, 2 Vern. 1.
(*c*) Tasker *v*. Small, 6 Sim. 625.